

**JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY
FOR AN ORDER EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD
(AUTHORITY: FAR 16.507)**

47QTCB22D0045/1305M425F0011

1. Agency and contracting activity. Department of Commerce, NOAA Acquisition and Grants Office (AGO), Corporate Services Acquisition Division (CSAD) and NOAA Office of the Chief Information Officer (OCIO), Cyber Security Division (CSD).

2. Nature and/or description of the action being approved.

This is a justification for an exception to fair opportunity for a modification to an existing order. The planned order type is firm-fixed price. The Government intends to award this follow-on order to Soliel LLC.

3. Description of the supplies or services required to meet the agency's needs (including the estimated value).

CSD requires a contractor to:

- Strengthen NOAA's ability to safeguard Controlled Unclassified Information (CUI), Personally Identifiable Information (PII), scientific data, and operational information
- Review System Security Plans (SSPs), Plans of Action and Milestones (POA&Ms), standard operating procedures (SOPs) to ensure compliance with CUI federal requirements. Develop CUI handling processes and training materials.
- Support NOAA's Chief Data Officer, Chief Privacy Officer, Chief Information Security Officer (CISO), OCIO CUI Program, and Line/Staff Office leadership with expert guidance, documentation, and compliance artifacts
- Enhance accountability, visibility, auditing capability, and risk posture across NOAA programs that handle CUI

The expected period of performance is March 1, 2026 – January 9, 2028. The total estimated value, including all options, is [REDACTED].

4. Authority and supporting rationale. The contracting officer has determined the circumstances of the acquisition meet the following statutory exception under FAR 16.507-6(b) as supported below:

Logical follow-on - FAR 16.507-6(b)(3) – In the interest of economy and efficiency, this order must be issued on a sole-source basis because it is a logical follow-on to order number 1305M425F0011 already issued under the GSA 8(a) STARS III contract and all awardees were given a fair opportunity to be considered for the original order.

The scope of the CUI program requirements is directly related to, and substantially encompassed within, the scope of the Enterprise-Wide System Security and Compliance (EWSSC) effort being performed under the existing task order. The requirements fall within the same federal IT security, Risk Management Framework (RMF), and compliance architecture already supported under EWSSC and therefore represents a focused delineation and refinement of existing services rather

than a new functional domain. The EWSSC task order includes review of System Security Plans (SSPs), implementation and assessment of NIST-based security controls, control gap analyses and remediation tracking through Plans of Action and Milestones (POA&Ms), RMF authorization support, continuous monitoring, security policy development, and audit artifact management. The CUI activities and requirements are already implied in the original TO because they are embedded into the RMF requirements (see, e.g., DOC SPAA Handbook v1.1, section 4.2.3 "RMF Task P-10 Asset Identification" at p.20, and section 4.2.5 "RMF Task P-12 Information Types" at p.21, and DOC Security and Privacy Controls Matrix v1.5, CUI is specifically identified in three DOC Baseline Controls and across three additional control families (AC, CM, and PM)). CUI safeguarding requirements, including implementation of controls consistent with NIST SP 800-171, are executed through the same control families, documentation structures, and governance workflows already embedded in NOAA's NIST SP 800-53 rev 5 based RMF processes under EWSSC. Incorporating explicit CUI requirements that were previously implied in the EWSSC task order work primarily involves integrating additional control specificity, marking guidance, data handling procedures, and compliance documentation into existing SSPs, control implementation narratives, inheritance models, and risk management artifacts. These are core deliverables already maintained by the contractor. These are core deliverables already maintained by the contractor and the explicit incorporation of previously implied CUI requirements will distinguish the full compliance expected of deliverable performance. Accordingly, the CUI program requirements are directly aligned to the EWSSC scope because they delineate the nature of the information subject to the security controls are being incorporated explicitly here consistent with the maintenance, improvement, and compliance support of objectives 1, 2, and 4 in the original task order" (see p.6 of the TO modification under "Scope and Objectives").

To a substantial extent, the CUI effort relies on the same technical domain, documentation framework, policy alignment processes, and compliance workflows as EWSSC. The work does not introduce a materially different scope of services but instead represents a targeted enhancement and operational extension of the established IT security and compliance framework. Accordingly, the relationship between the CUI program requirements and the EWSSC scope is direct, significant, and functionally integrated.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer reviewed [REDACTED]

[REDACTED] Therefore, the anticipated cost to the Government will be fair and reasonable.

6. Any other facts supporting the justification.

All supporting facts have been documented herein.

7. **Actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.**

A future competition is planned for this requirement with an estimated date anticipated to occur in FY27, Q4.

8. **Technical/Requirements Representative Certification.** (Required per FAR 16.507-6(d)(2)(ix))

I certify the requirements and rationale for an exception to fair opportunity form a basis for the justification herein are complete and accurate to the best of my knowledge and belief.



Date

9. **Office of General Counsel Review.** (Required per CAM 1301.71)



Date

10. **Approving Official Determination of Circumstance Applicability.**

In accordance with FAR 16.507-6(d)(2)(x), the undersigned approving official for this justification hereby determines the circumstance cited above at #4, Authority and supporting rationale, applies to this order.

Contracting Officer's Certification and Approval

I certify this justification is accurate and complete to the best of my knowledge and belief.

Approve

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Jeremy Johnson
Contracting Officer

Date